



CHAPTER xi.

An Act to authorise the abandonment of certain light railways and tramways in and near Rochdale to make better provision for the health local government and finance of the borough of Rochdale and for other purposes.

A.D. 1932.

[12th May 1932.]

WHEREAS the mayor aldermen and burgesses of the borough of Rochdale (hereinafter referred to as "the Corporation" and "the borough" respectively) are the owners of a tramway undertaking which includes certain light railways in the borough and a tramway in the urban district of Whitworth and in connection therewith the Corporation work certain tramways in the urban districts of Milnrow and Whitworth belonging to the councils of those districts respectively and the Corporation also provide public service vehicles along the routes of all the said light railways and tramways :

And whereas it is expedient that provision should be made as in this Act contained for the abandonment of the said light railways and tramways subject to a service of public service vehicles in substitution therefor being provided or arranged for by the Corporation along the routes of such light railways and tramways :

And whereas it is expedient that further and better provision should be made with reference to streets and buildings and sanitary matters and otherwise for the local government health improvement and finance of the

A.D. 1932. — borough and that the powers of the Corporation in relation thereto should be enlarged and extended :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

- Short title. 1. This Act may be cited as the Rochdale Corporation Act 1932.
- Division of Act into Parts. 2. This Act is divided into Parts as follows :—
 Part I.—Preliminary.
 Part II.—Tramways and public service vehicles.
 Part III.—Streets and buildings.
 Part IV.—Infectious disease and sanitary provisions.
 Part V.—Finance.
 Part VI.—Miscellaneous.
- Interpretation. 3. Subject to the provisions of this Act and unless the subject or context otherwise requires the several words and expressions to which by the Public Health Acts meanings are assigned shall in this Act have in relation to the relative subject matter the same respective meanings And in this Act—
 “ The borough ” means the borough of Rochdale ;
 “ The Corporation ” means the mayor aldermen and burgesses of the borough ;
 “ The Minister ” means the Minister of Health ;

“ The town clerk ” and “ the medical officer ” mean A.D. 1932.
respectively the town clerk and the medical
officer of health of the borough and respectively
include any person duly appointed by the
Corporation to discharge temporarily the duties
of any such officer ;

“ The Public Health Acts ” means the Public Health
Act 1875 and the Acts amending and extending
the same ;

“ The Milnrow Council ” means the urban district
council of Milnrow ;

“ The Milnrow tramway ” means the tramways of the
Milnrow Council authorised by the Milnrow
Urban District Council Tramways Order 1910
and extending from the boundary of the urban
district of Milnrow in Rochdale Road along that
road Bridge Street Dale Street and Newhey
Road to a point opposite the south-east side
of Huddersfield Road Newhey ;

“ The Whitworth Council ” means the urban district
council of Whitworth ;

“ The Whitworth tramway ” means the tramways
of the Whitworth Council authorised by the
Whitworth Urban District Council Tramways
Order 1909 and extending from a point in
Market Street Healey 2·90 chains north of
Ending Rake along Market Street Healey Market
Street Facit and Market Street Shawforth to
the boundary in such last-mentioned street of
the urban district of Whitworth ;

“ Public service vehicle ” has the same meaning as in
the Road Traffic Act 1930 ;

“ Road authority ” means with reference to any
road or part of a road the authority company
or person charged with the maintenance of
such road or part of a road ;

“ Daily penalty ” means a penalty for every day on
which any offence is continued after conviction ;

“ The general rate fund ” and “ the general rate ”
mean respectively the general rate fund and
the general rate of the borough ; and

A.D. 1932.

“ Revenues of the Corporation ” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

PART II.

TRAMWAYS AND PUBLIC SERVICE VEHICLES.

As to
abandon-
ment of
certain
light
railways
and tram-
ways.

4.—(1) The Corporation may with the consent of the Minister of Transport abandon or discontinue the whole or any part of any light railway in the borough or of the tramway in the urban district of Whitworth which is owned by the Corporation. Provided that no such light railway nor the said tramway shall be abandoned or discontinued in pursuance of this subsection unless and until the Corporation shall have provided or arranged for a service of public service vehicles on the route of such light railway or tramway or portion thereof proposed to be abandoned or discontinued and in the case of such tramway shall have given to the road authority one month's previous notice in writing of their intention to abandon or discontinue the same or part thereof.

(2) The Milnrow Council may with the consent of the Minister of Transport abandon or discontinue the Milnrow tramway and the Whitworth Council may with the consent of the said Minister abandon or discontinue the Whitworth tramway. Provided that no such tramway shall be abandoned or discontinued in pursuance of this subsection unless and until the Corporation shall have provided or arranged for a service of public service vehicles on the route of such tramway nor unless the Milnrow Council or the Whitworth Council as the case may require shall have given to the road authority one month's previous notice in writing of their intention to abandon or discontinue such tramway.

(3) Whenever the Corporation the Milnrow Council or the Whitworth Council have in pursuance of the foregoing provisions of this section abandoned or discontinued the whole or any part of any light railway or tramway they may and if required by the road authority shall forthwith take up and remove the rails and paving setts of the light railway or tramway or part thereof so abandoned

or discontinued and the apparatus and equipment provided or used for the purposes thereof or in connection therewith (hereinafter in this section referred to as "the tramway apparatus").

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(4) On the taking up and removal of any such rails paving setts or tramway apparatus the Corporation the Milnrow Council or the Whitworth Council as the case may be (hereinafter in this section referred to as "the local authority") shall (except where the rails paving setts or apparatus are not situate in a road dedicated to public use) with all convenient speed and in all cases within six weeks (unless the road authority otherwise consent in writing) fill in the ground and make good the surface and to the satisfaction of the road authority restore the portion of road upon which such rails paving setts and tramway apparatus were laid or placed to as good a condition as that in which it was before the rails paving setts and tramway apparatus were laid or placed thereon and shall clear away all surplus paving or metalling material or rubbish occasioned by such work and they shall cause the place where the road is opened or broken up to be fenced and watched and to be properly lighted at night until such filling in making good restoration and clearing away as aforesaid has been completed or (in cases where the works necessary for the restoration are done by the road authority under the provisions of the proviso to this subsection) until the removal of such rails paving setts and tramway apparatus has been completed :

Provided that the road authority (if they think fit) may within one month after the service upon them of the notice referred to in subsection (1) or subsection (2) of this section give notice to the local authority that they desire to reconstruct the road and the local authority shall in lieu of carrying out the works necessary for the reconstruction of the road pay to the road authority in respect of the tramway or part thereof to be abandoned by the local authority such sum as would have represented the cost to which the local authority would have been put in restoring the portion of the road on which the rails paving setts and tramway apparatus were laid or placed to as good a condition as that in which it was before the rails paving setts and tramway apparatus were laid or placed thereon. Provided also that the local authority shall not be required to bear any part

A.D. 1932. — of any additional cost which the road authority may incur in putting the road into a condition better than it was at the time when the rails paving setts and tramway apparatus were laid or placed thereon.

(5) If any difference arises under this section between the local authority and the road authority the same shall be settled by an engineer to be appointed at the request of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

(6) As from the date on which the local authority abandon and discontinue the whole or any part of any light railway or tramway in pursuance of the foregoing provisions of this section they shall cease to be under any obligation to use the same or to run carriages thereon or (except in so far as they are the highway authority in respect thereof) to maintain or repair any part of the roadway.

(7) The Corporation on the one hand and the Milnrow Council or the Whitworth Council on the other hand may enter into and carry into effect agreements with reference to any matter incidental to the abandonment and discontinuance of the Milnrow tramway and the Whitworth tramway respectively and to the substitution therefor by the Corporation of a service of public service vehicles.

(8) Nothing in this section shall prejudice or affect the rights of the Milnrow Council to abandon or discontinue the working of the Milnrow tramway or of the Whitworth Council to abandon or discontinue the working of the Whitworth tramway in accordance with the provisions of the Tramways Act 1870.

Provisions
as to
Milnrow
tramway.

5.—(1) From and after the date when the Milnrow tramway shall have been abandoned or discontinued under the provisions of this Act the Corporation shall in each year until the whole of the tramway capital has been repaid pay to the Milnrow Council a sum equal to the amount of the instalment of principal and interest (less the tax thereon) which the Milnrow Council are liable to pay in that year in respect of the tramway capital.

(2) In this section the expression " tramway capital " means such part of the outstanding capital debt of the

Milnrow Council as was incurred for and in connection with the construction of the Milnrow tramway. A.D. 1932.

(3) As soon as the surface of the road upon which the Milnrow tramway was laid has been restored or reconstructed as provided by the section of this Act of which the marginal note is "As to abandonment of certain light railways and tramways" the Corporation shall pay to the Milnrow Council a sum equal to the amount expended by the Milnrow Council in such restoration or the amount paid by the Milnrow Council to the road authority as a contribution towards such reconstruction.

(4) Any sums payable by the Corporation to the Milnrow Council under the provisions of this section shall be paid out of the general rate fund and the general rate as part of the expenditure in regard to the public service vehicles of the Corporation.

(5) As from the date mentioned in subsection (1) of this section the indenture of lease made between the Milnrow Council and the Corporation dated the twenty-first day of July one thousand nine hundred and nineteen shall be cancelled and cease to have effect.

(6) If any difference arises under this section between the Corporation and the Milnrow Council the same shall be settled by an arbitrator to be appointed at the request of either party by the Minister of Transport and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

6.—(1) From and after the date when the Whitworth tramway shall have been abandoned or discontinued under the provisions of this Act the Corporation shall in each year until the whole of the tramway capital has been repaid pay to the Whitworth Council a sum equal to the amount of the instalment of principal and interest (less the tax thereon) which the Whitworth Council are liable to pay in that year in respect of the tramway capital. Provisions as to Whitworth tramway.

(2) In this section the expression "tramway capital" means such part of the outstanding capital debt of the Whitworth Council as was incurred for and in connection with the construction of the Whitworth tramway.

(3) As soon as the surface of the road upon which the Whitworth tramway was laid has been restored or

A.D. 1932. — reconstructed as provided by the section of this Act of which the marginal note is "As to abandonment of certain light railways and tramways" the Corporation shall pay to the Whitworth Council a sum equal to the amount expended by the Whitworth Council in such restoration or the amount paid by the Whitworth Council to the road authority as a contribution towards such reconstruction.

(4) Any sums payable by the Corporation to the Whitworth Council under the provisions of this section shall be paid out of the general rate fund and the general rate as part of the expenditure in regard to the public service vehicles of the Corporation.

(5) As from the date mentioned in subsection (1) of this section the agreement and supplemental agreement made between the Whitworth Council and the Corporation and dated respectively the fifth day of May one thousand nine hundred and nine and the sixth day of March one thousand nine hundred and eleven shall be cancelled and cease to have effect.

(6) If any difference arises under this section between the Corporation and the Whitworth Council the same shall be settled by an arbitrator to be appointed at the request of either party by the Minister of Transport and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Fares and charges.

7.—(1) The Corporation may demand and take for passengers and parcels carried on their public service vehicles such fares and charges as they may think fit Provided that every passenger may take with him personal luggage not exceeding twenty-eight pounds in weight without extra charge.

(2) The Corporation may if they think fit carry on such vehicles small parcels not exceeding fifty-six pounds in weight and dogs in the care of passengers the charge for any such dog to be a sum not exceeding the fare payable by the passenger but they shall not carry on such vehicles any other goods or animals.

(3) Section 9 (Fares and charges) of the Rochdale Corporation Act 1925 is hereby repealed.

Saving for Part IV of Road Traffic Act 1930.

8. Nothing in this Part of this Act shall be in derogation of the provisions of Part IV of the Road Traffic Act 1930.

PART III.

A.D. 1932.

STREETS AND BUILDINGS.

9.—(1) If any flag banner streamer sign or lettering shall after the passing of this Act be suspended across or over the carriageway of any street without the permission in writing of the Corporation the owner or person responsible for such suspension shall be liable to a penalty not exceeding twenty shillings and shall forthwith (upon receiving notice in writing from the Corporation requiring him so to do) remove the flag banner streamer sign or lettering.

Banners
and signs
over
streets.

(2) Any person neglecting or refusing to comply with the requirement of any such notice and any person who shall have removed any such flag banner streamer sign or lettering as is referred to in any such notice (whether the removal be effected before or after the receipt of the notice) and shall after such removal suspend the same or any similar flag banner streamer sign or lettering without the permission in writing of the Corporation or without complying with any conditions attaching to any such permission shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings and the Corporation may themselves remove any such flag banner streamer sign or lettering and any expense incurred by them in so doing may be recovered by them summarily as a civil debt from such person.

(3) For a period of two years from the passing of this Act the foregoing provisions of this section shall not apply to any such flag banner streamer sign or lettering as is referred to in subsection (1) of this section which was in use on the fifteenth day of November one thousand nine hundred and thirty-one.

(4) Any person aggrieved by any requirement of any notice of the Corporation (including the withholding of permission by the Corporation or the conditions attached to any such permission) under the provisions of this section may within fourteen days after the service of such notice appeal to a court of summary jurisdiction provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just Notice of the

A.D. 1932. right to appeal shall be endorsed on every notice of the Corporation under this section.

(5) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

Direction
signs.

10.—(1) The Corporation may cause to be put up or painted on a conspicuous part of any house building or place at or near to the corner of any street signs indicating the classified road number of the Minister of Transport and the direction or the distance to towns railway stations public buildings and other places of a public character.

(2) Before putting up or painting a sign on a house building or place the Corporation shall give notice thereof to the owner of such house building or place and such owner if aggrieved by such notice may appeal to a court of summary jurisdiction within one month after the service of such notice provided he give written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

Notice of the right to appeal shall be endorsed on every notice given by the Corporation under this section.

(3) Any person who shall wilfully and without the consent of the Corporation obliterate deface obscure remove or alter any such sign shall be liable to a penalty not exceeding forty shillings and the Corporation may recover the expenses of replacement and making good from such person.

(4) The exercise of the powers conferred on the Corporation by this section shall be subject to any regulations or orders made by the Minister of Transport or any general or special directions given by him with respect to traffic signs and signals in pursuance of the Road Traffic Act 1930.

Power to
place fences
near school
entrances.

11. The Corporation may from time to time place repair renew and maintain fences rails and posts on the sides of any footways or carriageways adjacent to the entrances to or exits from any school for the purpose of preventing danger from traffic along such carriageways to children going to or coming from such school and may remove the same when the Corporation shall think fit.

12. The Corporation may (a) erect or fix and maintain police telephone call boxes in such positions in any street road or public place within the borough as they think fit and (b) with the consent of the road authority and with the consent and at the cost of the local authority (which cost the local authority are hereby authorised to incur) erect or fix and maintain street fire alarms in such positions as may be agreed in any street road or public place in the district of any local authority with whom the Corporation have entered into an agreement for the use of their fire brigade. Provided that nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

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Police
telephone
call boxes
and fire
alarms.

13. Any person who shall cover over or wilfully or negligently obstruct or interfere with the convenient access to any fire alarm fire plug or hydrant or who shall remove or efface any plate or mark indicating the position of such alarm plug or hydrant shall be liable to a penalty not exceeding five pounds and the Corporation may recover from such person the expenses of replacement and making good.

Fire plugs.

14.—(1) (a) No wall fence hoarding or other similar structure (in this section referred to as “structure”) of a greater height than six feet six inches above the level of the ground at the nearest boundary of the road or street shall be erected or brought forward on any land in any street—

As to
hoardings
and similar
structures.

- (i) beyond any building line prescribed by the Corporation in respect of the land under the provisions of any Act; or
- (ii) if there be no such line beyond any line which is enforceable by the Corporation for buildings under subsection (2) of section 100 of the Housing Act 1925; or
- (iii) if there be neither of such lines beyond the line to which any house or building erected or brought forward on the land would have to conform under the provisions of the Public Health (Buildings in Streets) Act 1888.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not

A.D. 1932. — exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may take down or remove any structure erected in contravention of those provisions and recover the expenses incurred by them in so doing from the offender.

(2) (a) The Corporation may by notice in writing require the owner or occupier of any land upon which any structure exists at the passing of this Act which would (if erected after the passing of this Act) have contravened the provisions of subsection (1) of this section to remove or alter such structure within such time (not being less than six days) as may be specified in the notice in such a manner as to comply with those provisions and the Corporation shall on demand repay to the owner or occupier of such land the reasonable expenses incurred by him in so doing.

(b) Any person who shall neglect or refuse to comply with a notice from the Corporation given in pursuance of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may at their own expense take down or remove any structure erected or maintained in contravention of those provisions.

(3) The provisions of this section shall not with regard to any structure existing at the date of the passing of this Act be enforceable for a period of five years from such date and shall not apply to any wooden structure fence or hoarding of a moveable or temporary character erected by a builder for his use during the construction alteration or repair of any building unless such structure fence or hoarding is not taken down or removed immediately after such construction alteration or repair is complete.

Extension
of section
157 of
Public
Health Act
1875.

15. Section 157 of the Public Health Act 1875 in its application to the borough shall be extended so as to empower the Corporation to make byelaws with respect to the following matters (namely):—

- (i) the number of dwelling-houses which may be erected in one block or in one continuous row;
- (ii) the provision of an open space for separating blocks or rows of dwelling-houses and the width of such space;

- (iii) the situation construction and height of walls or fences upon or across such open space; A.D. 1932.
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- (iv) for securing that waterclosets shall be so constructed and supplied with water that they can be adequately flushed by mechanical means and the provision to be made for securing the protection of the same from frost and preventing the improper use of such closets and of the blocking of the pipes therefrom;
- (v) the provision of fixed baths in such classes of new dwelling-houses as may be prescribed in the byelaws;
- (vi) for securing that any geyser or similar gas heated water apparatus of the rapid water heating type or any gas apparatus for heating a building or any part of one is properly fixed and adequately ventilated; and
- (vii) for requiring the construction across kerbed or paved footways in streets of means of access to and from garages.

16.—(1) For the purpose of facilitating traffic by removing obstructions to view within a distance of twelve yards from the corner of any street the Corporation may give notice to the owner or occupier of any land situate within such distance prescribing the height not being less than four feet six inches above the ground level of such street at the nearest boundary of fences hoardings boundary walls banks hedges trees shrubs and similar obstructions within such distance of such corner and the following provisions shall have effect :—

Height of
obstructions
to view at
street
corners.

- (a) Unless such notice is withdrawn by the Corporation no person shall erect a fence hoarding boundary wall bank or similar obstruction or permit a hedge tree or shrub to grow at a greater height than that prescribed contrary to the requirements of the notice;
- (b) If required by the Corporation the owner or occupier of such land shall reduce the height of any fence hoarding boundary wall bank hedge tree shrub or similar obstruction which exceeds that prescribed by the notice to a height not exceeding that so prescribed.

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(2) Any person who contravenes the provisions of paragraph (a) of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may reduce the height of such fence hoarding boundary wall bank hedge tree shrub or similar obstruction to the height prescribed by them.

(3) If any person for the period of one month after the service of a notice upon him by the Corporation of a requirement under paragraph (b) of subsection (1) of this section fails to comply therewith the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage.

(4) Where any tree hedge or shrub within fifteen yards of such corner obstructs such view as is referred to in subsection (1) of this section the Corporation may serve a notice on such owner or occupier requiring him to cut lop or top the tree hedge or shrub within fourteen days so as to prevent such obstruction and such notice shall be sufficient authority to the person so served to execute the work prescribed in the notice. In default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage.

(5) (a) Any person aggrieved by any notice given by the Corporation or any requirement of the Corporation under this section may within fourteen days from the date of the decision of the Corporation appeal to a court of summary jurisdiction.

(b) Any person so appealing shall give or cause to be given written notice of such appeal and of the grounds thereof to the town clerk before lodging his appeal and the court shall have power to make such order in the matter of the appeal as the court may think fit and to award costs.

(c) Notice of the right to appeal shall be endorsed on every notice or requirement of the Corporation under this section.

(6) The provisions of this section shall not with regard to any fence hoarding boundary wall or similar obstruction existing at the date of the passing of this Act and used for advertising purposes be enforceable for a period of five years from such date and shall not

apply to any wooden structure fence or hoarding of a moveable or temporary character erected by a builder for his use during the construction alteration or repair of any building unless such structure fence or hoarding is not taken down or removed immediately after such construction alteration or repair is complete.

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17.—(1) Every building erected after the passing of this Act exceeding two storeys in height and in which the upper surface of the floor of any upper storey is above twenty feet from the street level and which is used or intended to be used as flats or as a tavern hotel hospital nursing home orphanage boarding-house common lodging-house or school or as a shop or restaurant in which sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop or restaurant shall be provided on each of the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in case of fire for the persons dwelling sleeping or employed in each such upper storey or resorting thereto as may be reasonably required by the Corporation under the circumstances of the case and the owner shall not permit such building to be occupied until the Corporation shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

Means of
escape from
buildings.

(2) From and after the first day of January one thousand nine hundred and thirty-three the Corporation in the case of every existing building exceeding two storeys in height and used or intended to be used as flats or as a tavern hotel hospital nursing home orphanage boarding-house common lodging-house or school or as a shop or restaurant in which sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop or restaurant if in the opinion of the Corporation such building is not provided with proper and sufficient fire-fighting and first-aid fire appliances and proper and sufficient means of escape from each storey the upper surface of the floor whereof is above twenty feet from the street level in case of fire for the persons dwelling sleeping or employed in each such upper storey may at any time serve on the owner of such building a notice requiring him within a reasonable time to be specified in such notice to provide such portable appliances and means of escape as in the

A.D. 1932. — circumstances of the case can reasonably be required and the owner shall thereupon take the necessary steps to provide the appliances and means of escape so required.

(3) Where the means of escape in case of fire provided in connection with any such building as aforesaid shall become inadequate in consequence of any alteration in the circumstances or conditions affecting such building the owner of the building shall upon the requirement of the Corporation make such alterations in the said means of escape as may be reasonably necessary and shall if so required by the Corporation provide further or other means of escape.

(4) (a) Any person aggrieved by any requirement of the Corporation under subsection (2) or subsection (3) of this section may appeal to a court of summary jurisdiction within seven days after the receipt of the requirement provided he give twenty-four hours' notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(b) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this section.

(5) The owner of the building shall notwithstanding any agreement with the occupier have power to take such steps as are necessary for complying with any requirements of the Corporation under this section.

(6) If the owner of the building alleges that any occupier should bear or contribute to the expenses of complying with any requirement of the Corporation under this section he may apply to the county court who after giving the occupier an opportunity of being heard may make such order as appears to the court just and equitable in all the circumstances of the case.

(7) The appliances and means of escape in case of fire provided in any building in pursuance of this section shall not be altered without the consent in writing of the Corporation and shall at all times be maintained and kept by the occupier of the building in good and efficient condition and (in the case of such means of escape) free from obstruction.

(8) This section shall not apply to any premises to which sections 14 and 15 of the Factory and Workshop

Act 1901 or any enactment amending those sections apply. A.D. 1932.

(9) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(10) Where an existing building is newly converted after the passing of this Act into flats it shall be deemed to be a new building within the meaning of this section.

18. The power of the Corporation to make byelaws with respect to secondary means of access under section 23 of the Public Health Acts Amendment Act 1890 shall extend to enable them to require every person who shall erect fronting a street or intended street terraces or other continuous blocks of houses not giving access through their own grounds to the backs of such houses to make and construct a back road and side roads at the back and at each end of such terraces or continuous blocks of houses of such widths as may be prescribed by such byelaws and to keep such roads open and unobstructed for the full width thereof.

Byelaws as to secondary means of access.

19. Any tent van shed or similar structure standing upon land abutting upon a street shall for the purpose of the application of section 3 of the Public Health (Buildings in Streets) Act 1888 to the borough be deemed to be a house or building within the meaning of those words where they first occur in the said section.

Provisions as to tents vans &c.

20.—(1) (a) No tent van shed or similar structure used or intended to be used for human habitation shall be placed or kept on any land without the previous approval of the Corporation.

Prohibition of tents vans &c.

(b) It shall not be lawful for any person without the previous consent of the Corporation to let or permit to be used any land for occupation by any tent van shed or similar structure used or intended to be used for human habitation unless and until such land is provided with sufficient roads and sewers and furnished with a separate supply of water to the satisfaction of the Corporation.

(2) Any person aggrieved by the withholding by the Corporation of any approval or consent under the provisions of this section may within twenty-one days from the date of the decision of the Corporation appeal to a court

A.D. 1932. of summary jurisdiction and such court may make such order in the premises and on such terms and conditions as to the court may seem just. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(3) This section shall not apply to (a) a tent van shed or similar structure unless it is used or intended to be used by the occupier as a sole or principal means of habitation for an unbroken period of at least three months or (b) any person dwelling in a tent or van or other similar structure who is a roundabout proprietor travelling showman or stallholder travelling with a travelling show not being a pedlar or hawker.

(4) Any person offending against the provisions of this section shall be liable to a penalty of five pounds and to a daily penalty not exceeding twenty shillings.

Closet
accommoda-
tion in
houses
occupied by
more than
one family.

21.—(1) Section 36 of the Public Health Act 1875 shall with the necessary modifications apply to a part of a house occupied by a separate family as it applies to the whole of a house.

(2) The provisions of subsections (1) (2) and (3) of section 7 of the Housing Act 1925 as amended by the Housing Act 1930 shall apply with any necessary modifications as if the same were set out in this section.

PART IV.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

Discontinu-
ance of
offensive
trade.

22.—(1) In any case in which premises are being used for the carrying on of an offensive trade within the meaning of section 112 of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 and by section 44 of the Public Health Act 1925 and in the opinion of the Corporation it is inexpedient in the interests of public health or having regard to any change since the date of the establishment of such offensive trade in the character of the neighbourhood in which such premises are situate that such trade should be carried on in such premises the owner or occupier of the same may be required by the Corporation after six months' notice in writing under the hand of the town clerk to cease to use such premises for the carrying on of such offensive trade :

Provided that the formation or expression by the Corporation of an opinion under this subsection shall be deemed to be a determination of the Corporation within the meaning of the section of this Act of which the marginal note is "As to appeals" and that the provisions of the said section of this Act shall accordingly apply with respect to such opinion as well as to any requirement by the Corporation under this subsection.

(2) Any person who fails or neglects to comply with any requirement of the Corporation under the provisions of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) If the Corporation require any person to cease to use such premises for the carrying on of an offensive trade they shall pay to such person compensation for any loss sustained by him in consequence of the action of the Corporation. Provided that this subsection shall not apply in the case of any premises with respect to which the consent of the Corporation shall have been given for a period only unless the Corporation shall have required that the user of such premises for the carrying on of an offensive trade shall cease before the expiration of such period.

(4) The powers of this section shall be in addition to and not in derogation of the existing powers of the Corporation with reference to offensive trades.

23.—(1) Every medical practitioner attending on a person who is or is suspected to be suffering from food poisoning shall forthwith on becoming aware that such person is or is suspected to be so suffering send to the medical officer a notification of the case stating the name of such person and the place at which such person is.

Medical practitioners to notify cases of food poisoning.

(2) The Corporation shall pay to every medical practitioner for each notification duly sent by him in accordance with this section a fee of two shillings and sixpence if the case occurs in his private practice and of one shilling if the case occurs in his practice of medical officer of any public body or institution.

(3) Every person required by this section to give notice who fails to give the same in accordance with this section shall be liable to a penalty not exceeding forty shillings.

A.D. 1932.

Power to
close
slaughter-
houses if
injurious to
public
health.

24.—(1) (a) The Corporation may by written notice to the owner and occupier of any registered slaughter-house which from its situation or construction is in the opinion of the Corporation injurious or dangerous to the public health or which shall have remained unused as a slaughter-house for a period of nine months require that the premises shall cease to be used as a slaughter-house on and after such date (not being less in the case of a slaughter-house which is in the opinion of the Corporation injurious or dangerous to public health than six months from the service of such notice) as may be specified in the notice and no person shall after such date slaughter in the way of trade any cattle horse sheep or pig on the said premises.

(b) Provided that not less than three months before making any such requirement in the case of any slaughter-house which from its construction is in their opinion injurious or dangerous to the public health the Corporation shall give notice in writing to the owner or occupier thereof specifying the respects in which such slaughter-house is in their opinion so injurious or dangerous and also specifying their requirements with regard thereto and if within the said period of three months the owner or occupier of such slaughter-house shall have removed the grounds of objection thereto no such written notice as is first above mentioned shall be given to them by the Corporation.

(c) Provided also that such owner or occupier may within one month after receiving any such notice in writing from the Corporation object thereto on the ground that the requirements contained therein are unreasonable and unnecessary in the interests of public health and any such objection shall failing agreement between the Corporation and the owner or occupier making the same be determined on appeal to the Minister by the Minister and unless and until the Minister shall have determined that the said requirements are reasonable and necessary no such written notice as is first above mentioned shall be given to the owner or occupier of the slaughter-house in question.

(2) The Corporation shall make compensation to the owner and occupier of any registered slaughter-house (other than a slaughter-house which has remained unused as a slaughter-house for a period of nine months) who shall be injuriously affected by any requirement of the

Corporation under subsection (1) of this section such compensation in case of difference to be settled in manner provided by the Public Health Act 1875 Provided always that in the case of a slaughter-house which is defective or otherwise open to objection on sanitary grounds the arbitrator shall have regard thereto in settling the amount of compensation (if any) which shall be awarded in pursuance of this section.

A.D. 1932.

(3) If any person acts in contravention of the provisions of subsection (1) of this section he shall be liable for each offence to a penalty not exceeding five pounds.

25. When the medical officer certifies in writing that any dwelling-house is in an insanitary condition and that the occupier thereof is unable through infirmity or mental incapacity to remedy such condition and that his health is thereby endangered a court of summary jurisdiction may on the application of the Corporation (who shall give to the occupier seven days' notice of their intention to make such application) make an order for the removal of such occupier to an institution or other dwelling for such period as the court may by such order direct as being necessary to enable the Corporation to cleanse and disinfect the dwelling-house and the Corporation may carry out the removal and such cleansing and disinfection of the dwelling-house as may be necessary.

Cleansing of dwelling-houses in certain cases.

26.—(1) It shall not be lawful for any person (other than a person appointed by the Corporation for the purpose of emptying ashbins or other receptacles for refuse) to sort turn over or disturb the contents of any such receptacle when placed in any street or in any forecourt adjoining any street for the purpose of the removal of such contents by the Corporation.

Prohibiting sorting of contents of ashbins.

(2) Any person acting in contravention of the provisions of this section shall be liable to a penalty not exceeding five pounds.

PART V.

FINANCE.

27.—(1) The Corporation may in addition to any moneys which they are now authorised to borrow or which they may be authorised to borrow under the provisions of any public general Act. borrow at interest

Power to borrow and repayment of borrowed moneys.

A.D. 1932. for the purposes set forth in the first column of the following table any sums not exceeding the respective sums set forth in the second column thereof and all moneys so borrowed shall be chargeable on the revenues of the Corporation and shall be repaid within the respective periods set forth in the third column thereof and the Corporation may apply any sum so borrowed for the said purposes respectively (that is to say) :—

Purpose.	Amount.	Period for repayment.
(1) For paying the costs charges and expenses of this Act as hereinafter defined.	The sum requisite.	Five years from the passing of this Act.
(2) For taking up and removing rails paving setts apparatus and equipment filling in the ground and making good the surface of and restoring any road within or outside the borough under section 5 (As to abandonment of certain tramways on omnibus routes of Corporation) of the Rochdale Corporation (General Powers) Act 1930 and the section of this Act of which the marginal note is " As to " abandonment of certain light rail, " ways and tramways."	£56,000	Ten years from the date or dates of borrowing.

(2) The Corporation may also with the sanction of the Minister of Transport borrow such further moneys as may be necessary for any of such last-mentioned purposes and any moneys borrowed under this subsection shall be repaid within such periods not exceeding ten years as may be prescribed by that Minister and all moneys so borrowed shall be chargeable on the revenues of the Corporation.

Incorporation of certain financial provisions.

28. The following provisions of the Acts in this section mentioned shall so far as applicable extend and apply to and in respect of moneys borrowed by the Corporation under this Act as if they were re-enacted herein (that is to say) :—

The Rochdale Corporation Water Act 1898—

Section 70 (Application of money borrowed);

The Rochdale Corporation Act 1900—

A.D. 1932.

Section 111 (As to repayment &c.) except sub-
section (4) thereof;

Section 112 (As to sinking fund); and

The Rochdale Corporation Act 1908—

Section 39 (Mode of raising money):

Provided that the period for repayment referred to in the section of this Act whereof the marginal note is “Power to borrow and repayment of borrowed moneys” shall be deemed to be “the prescribed periods” for the purposes of the application of the said sections 111 and 112:

Provided further that the said section 111 shall not apply to moneys borrowed by the issue of stock.

29. All expenses incurred by the Corporation in carrying into execution the provisions of this Act with respect to which no other provision is made shall be defrayed out of the general rate fund and the general rate. Expenses of execution of Act.

PART VI.

MISCELLANEOUS.

30. The powers conferred by section 21 of the Town Police Clauses Act 1847 shall extend to enable the Corporation within the borough on days appointed for ceremonies public processions rejoicings markets fairs exhibitions carnivals races sports illuminations or similar occasions to direct the passage and stoppage of vehicles along or in particular streets to direct particular routes to be taken for particular descriptions of traffic and to prohibit the passage or stoppage of particular vehicles through or in certain streets at certain hours. Power to make orders as to traffic on carnival &c. days.

31. The Corporation may for the purpose of regulating and facilitating the traffic on market or fair days or the execution of any works by the Corporation or during the time of any public meeting procession or demonstration or for any other purpose which the Corporation having regard to the good government of the borough or the safety of the public may deem necessary order that the working of the tramways or light railways of the Corporation or any part thereof or the running of public service vehicles of the Corporation shall be stopped. Power for Corporation to suspend running of public service vehicles on special occasions:

A.D. 1932. — delayed or suspended but so that such stoppage delay or suspension shall continue only so long as may reasonably be necessary for the purposes aforesaid or any of them and the Corporation shall not be liable to pay compensation for damages in respect thereof.

As to
service of
notice
where river
banks
required to
be restored
&c.

32. Nothing in section 50 (Power of Corporation to enforce maintenance of the banks of the river Roch and its tributaries within borough) of the Rochdale Improvement Act 1872 shall require the Corporation to serve notice in writing upon the owners of lands buildings and hereditaments adjoining or abutting upon any part of the river Roch or its tributaries except the portions thereof in respect of which banks or walls are required by such notice to be built rebuilt restored maintained or kept in good order and repair.

Amendment
of definition
of "sky
sign" in
Act of 1900.

33. The Rochdale Corporation Act 1900 shall be read and have effect as if the words "unless adapted or" used wholly or in part for the purposes of any advertisement or announcement" were omitted from the definition of "sky sign" contained in section 4 (Interpretation) of the said Act.

As to
assignment
of rights of
burial.

34. Section 44 of the Cemeteries Clauses Act 1847 in its application to any cemetery belonging to the Corporation shall be read and have effect as if at the end thereof there were added the words "and in the case of" the grantee dying without having disposed of such" right it may be assigned by his personal representatives."

Power to
enter
premises.

35. The provisions of sections 102 and 103 of the Public Health Act 1875 shall extend and apply to the purposes of Part III (Streets and buildings) and Part IV (Infectious disease and sanitary provisions) of this Act as if those purposes had been mentioned in the said section 102.

Penalty on
occupiers
refusing
execution
of Act.

36. If the occupier of any house or part of a house or any lands shall prevent the owner thereof from carrying into effect any requirement of the Corporation under or in pursuance of Part III (Streets and buildings) and Part IV (Infectious disease and sanitary provisions) of this Act then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the

owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding forty shillings and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works. A.D. 1932.
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37. Save where otherwise provided by this Act the provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this Act. General provisions as to byelaws.

38. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence mentioned in any local enactment from time to time in force within the borough the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted. Damages and charges to be settled by court.

39. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of Part III (Streets and buildings) and Part IV (Infectious disease and sanitary provisions) of this Act or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal be provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Corporation may in like manner appeal. As to appeals.

40. The following enactments shall so far as applicable extend and apply as if they were re-enacted in this Act (that is to say) :— Incorporation of certain existing provisions.

The Rochdale Corporation Act 1908—

Section 46 (Recovery of penalties);

Section 47 (Saving for indictment &c.).

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Act, 1932.

A.D. 1932.

The Rochdale Corporation Act 1925—

Section 188 (Recovery of demands);

Section 192 (Inquiries by Minister of Health).

The Rochdale Corporation (General Powers) Act
1930—

Section 15 (Inquiries by Minister); and

Section 31 (Powers of Act cumulative):

Provided that the expression “the Minister” where
used in the said section 15 shall mean the Minister of
Transport.

Crown
rights.

41. Nothing in this Act affects prejudicially any
estate right power privilege or exemption of the Crown.

Costs of
Act.

42. The costs charges and expenses preliminary to
and of and incidental to the preparing applying for and
obtaining and passing of this Act as taxed and ascer-
tained by the taxing officer of the House of Lords or of the
House of Commons shall be paid by the Corporation out
of the general rate fund or out of such other funds and
in such proportions as the Corporation shall determine or
out of moneys to be borrowed under this Act for that
purpose.

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